

REFLECTION

The Five Things Shariah Protects

Maqasid ash-Shari'ah, from Imam al-Ghazali

What is Islamic law *for*? Scholars answer with the idea of *maqasid ash-shari'ah* (مَقَاصِدُ الشَّرِيعَةِ, "the aims of the Shariah").

Imam Abu Hamid al-Ghazali (d. 1111 CE), building on his teacher al-Juwayni, set it out clearly in his book *al-Mustasfa*. He said that the law serves *maslahah* (مَصْلَحَة, "the real good of people"), and that this good comes down to protecting five essentials:

1. **Religion:** الدِّين (*ad-deen*)
2. **Life:** النَّفْس (*an-nafs*)
3. **Intellect:** الْعَقْل (*al-'aql*)
4. **Lineage and family:** النَّسْل (*an-nasl*)
5. **Property:** الْمَال (*al-maal*)

Everything that protects these five is *maslahah*, and everything that destroys them is harm. That is why alcohol is forbidden (it attacks the mind), why theft and bribery are forbidden (they attack property), and why life is sacred.

Nine centuries ago, a Muslim jurist described the law as a guardian of every person's faith, life, mind, family and wealth. Learn Arabic, understand the Qur'an and your salah, and know your deen.

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